

Court No. - 39

Case :- WRIT - C No. - 34812 of 2018

Petitioner :- M/S Diamond Refractories And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Vimlendu Tripathi

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble B. Amit Sthalekar, J.

Hon'ble Surya Prakash Kesarwani, J.

Heard Sri Vimlendu Tripathi, learned counsel for the petitioners, Sri Chandan Agarwal, learned counsel for the respondent no.2 & 3 and the learned Standing Counsel for the respondents no.1, 4, 5 & 6.

The petitioners in the writ petition are seeking a direction to the respondent no.6, Tehsildar, Tehsil Sadar, District Ghaziabad to remove the seal from the factory unit of the petitioners situated at Plot No.C-154, BSR Road, Industrial Area, Site-I, Ghaziabad-201009 having the Electric Connection No.PV-B154B, voltage limit 11 KVA, Meter No.07342734 which has been sealed by the respondent no.6 on 24.09.2018 under the garb of demand citation issued against M/s. Supreme Ceramics Pvt. Ltd., Plot No.C-155, BSR Road, Industrial Area, Site-I, Ghaziabad.

Briefly stated the facts of the case as emerging from the averments of the writ petition as well as the documents appended thereto are that there are two Plots, namely, Plot No.C-154, BSR Road, Industrial Area, Site-I, Ghaziabad and Plot No.C-155, BSR Road, Industrial Area, Site-I, Ghaziabad. The owner of the two plots admittedly is M/s. Supreme Ceramics Pvt. Ltd. The petitioner is a tenant of Plot No.C-154. Both the premises, namely Plot No.C-154 and Plot No.C-155 have their independent electric connections though both in the name of M/s. Supreme Ceramics Pvt. Ltd. The admitted position is that the electric connection of Plot No.C-155 defaulted in payment of dues for which proceedings were initiated to seal the premises in question. In this process as submitted by Sri Chandan Agrawal, learned counsel for the respondents, both the premises, namely, Plot No.C-155 and Plot No. C-154 were sealed.

The grievance of the petitioner is that he is the tenant of M/s. Supreme Ceramics Pvt. Ltd. and is running a factory in Plot No.C-154 known as M/s. Diamond Refractories and some part of Plot No.C-155 is also under the tenancy of M/s. Diamond

Refractories.

What is not disputed before us between the parties is that the default of electricity dues is in respect of the Electricity Connection installed in Plot No.C-155 and not in Plot No.C-154 but it appears that the Tehsildar, respondent no.6 proceeded to seal the Plot No.C-155 as well as Plot No.154.

The submission of Sri Vimlendu Tripathi, learned counsel for the petitioners is that the M/s. Diamond Refractories employs about 80-90 persons and due to the sealing of the premises 80-90 employees have been seriously affected since the factory has shut down and there is no production nor income.

In respect of their grievances the petitioners have submitted a representation before the respondent no.4, District Magistrate, Ghaziabad on 25.09.2018 under due receiving (Annexure-12 of the writ petition) but there is nothing on record to show that the same has been decided.

In such a serious matter, we expected that the respondents no.4, 5 and 6 would have taken care to respond and reply immediately to the petitioners' representation dated 25.09.2018.

Section 4.3 (f) (iv) of the U.P. Electricity Supply Code, 2005 provides that the outstanding dues will be first charge on the assets of the Company and the licensee shall ensure that this is entered in an agreement with new applicant.

Section 43 of the Electricity Act, 2003, however, speaks of supply of electricity to premises on the application of the owner or occupier of any premises.

In the present case the petitioner is the tenant and occupier of M/s. Supreme Ceramics Pvt. Ltd. in premises C-154 and also has an independent electricity connection though in the name of M/s. Supreme Ceramics Pvt. Ltd having a different electricity connection number. There is no allegation that there is any default of the electricity connection number situated on Plot No.C-154. This aspect of the matter should have been considered by the Tehsildar before putting his seal on the premises in question and only then he should have proceeded to seal the premises Plot No.C-154. In our opinion, the Tehsildar has acted in a most high-handed manner.

We therefore allow this writ petition issue a writ in the nature of mandamus commanding the respondent no.6, Tehsildar, Tehsil-Sadar, Ghaziabad to open the seal of Plot No.C-154, BSR Road, Industrial Area, Site-I Ghaziabad-201009 forthwith.

We issue a further mandamus to the respondent no.4, District Magistrate, Ghaziabad to take a decision on the petitioners' representation dated 25.09.2018 noting the findings that we have recorded hereinabove latest by 25th October, 2018.

We make it clear that our order is confined to Plot No. Plot No.C-154, BSR Road, Industrial Area, Site-I Ghaziabad-201009 and in respect of the M/s. Diamond Refractories, the petitioner, only.

Order Date :- 12.10.2018

N Tiwari